

6.	25CV1689	BANK OF AMERICA N.A. VS. MARLENE A CANELA
MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED		

On May 21, 2026, Plaintiff, Bank of America, N.A. ("Plaintiff") filed a Notice of Motion and Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted; Memorandum in Support of Motion; Declaration in Support of Motion. Plaintiff's motion is unopposed.

According to the Proof of Service, Plaintiff served Defendant with Plaintiff's Specially Prepared Interrogatories to Defendant, Plaintiff's Requests for Admission to Defendant, and Plaintiff's Demand for Production of Documents to Defendant via mail on December 30, 2025. To date, no response has been received for Plaintiff's Requests for Admission to Defendant.

Plaintiff seeks an order that Requests for Admission No. 1, 2, 3, 4, 5, 6, 7, and 8, as well as Plaintiff's Requests for Admission of Genuineness of Documents as identified as 1) Terms and Conditions; and 2) a copy of a billing statement previously provided to Defendant by Plaintiff, be deemed admitted.

Pursuant to Code of Civil Procedure § 2033.280(b), if a party to whom requests for admission are directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. Such an order is mandatory unless the court finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with § 2033.220.

To date, no response has been received for Plaintiff's Requests for Admission to Defendant and no opposition been received by the Court to this underlying motion.

TENTATIVE RULING #6:

PLAINTIFF'S REQUEST IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO

COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.